

Plaintiff of notice as required by § 583.360. Per Local Rule 3.52(a), proofs of service of Notice of Motion are required to be filed in the Clerk's Office not less than two calendar days preceding the time set for the hearing.

Plaintiff filed an untimely opposition on January 20, 2026. Local Rule 3.52(d) requires opposition papers to be filed at least five court days prior to the hearing. The opposition was due to be filed January 15, 2026 (due to the court holiday on January 19, 2026). Local Rule 3.52(d) also authorized the court "to act on the matter without the consideration of the document so filed." The court notes that the Plaintiff's opposing papers are not accompanied by a proof of service.

In the interest of justice, the court will continue the hearing to Friday, February 27, 2026 at 9:00 am in Department 32. Defendants are ordered to serve Plaintiff with notice of the new hearing date, this order and all motion papers required under CCP § 1010 by close of business (5:00 pm) on January 23, 2026. All parties to file proofs of service of their papers.

15. 9:00 AM CASE NUMBER: N25-1916
CASE NAME: CLAIM OF:RENE VAN BUSKIRKRENE VANBUSKIRK
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

The Petition to Approve Compromise of Minor's Claim is approved. The court will execute the proposed orders as lodged on September 29, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
***HEARING ON MOTION FOR DISCOVERY COMPEL ANDREA MERRIT TO APPEAR FOR DEPOSITION**
FILED BY: MERRITT, DARYL
TENTATIVE RULING:

PARTIES TO APPEAR.

17. 9:01 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR ADMISSIONS, SET ONE (1)**
FILED BY: SCHAKANOVICH, ALDVIN
TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Requests for Admissions is granted in part and denied in part.

Request for Admission No. 4: Admit that on December 5, 2021, through an email at 10:20 p.m., YOU recommended to ADIAN to wait until after pre-market repairs to conduct home inspections.

Motion to compel further responses is granted. Defendant must admit or deny. The court finds the Defendant's original and supplemental responses are evasive.

Request for Admission No. 9: Admit that YOU observed evidence of water damage in the HALTEN PROPERTY during YOUR representation of ADIAN in the sale of the HALTEN PROPERTY.

Motion to compel further responses is granted. Defendant's objection that the term water damage is undefined and unintelligible is overruled. The term "water damage" is not employed used as a technical term, nor as a term of art—it is plain English. The call of the question is whether Defendants "observed" (*i.e.*, saw) evidence of water damage. The supplement response is evasive and non-responsive.

Request for Admission No. 13: Admit that during YOUR representation of ADIAN, YOU at one point believed that the fair market value of the HALTEN PROPERTY was \$1,050,000.

Motion to compel further responses is denied. Although the Defendant's original objections were evasive and non-sensical (arguing that #13 does not request the admission of a material fact), Defendants have answered in their supplemental response that #13 is denied.

Request for Admission No. 18: Admit that YOU were aware prior to CLOSE OF ESCROW that the HALTEN PROPERTY had roof leaks during YOUR representation of ADIAN.

Motion to compel further responses is denied. Defendants have responded, "Denied." Defendants assert they did not have "actual, firsthand" knowledge of roof leaks, but that they were "informed" by RW Construction that there were signs of a previous leak. Defendants are taking the position that this does not constitute being "aware" of roof leaks. Should Plaintiffs succeed in proving Defendants were "aware" of roof leaks at trial, Plaintiffs may seek to recover costs of having to prove that Defendants were "aware" that the property had roof leaks.

Request for Admission No. 19: Admit that YOU did not disclose the presence of roof leaks at the HALTEN PROPERTY in Exhibit "1."

Motion to compel further responses is granted. Defendants' purported denial based on whether they possessed actual firsthand knowledge of roof leaks is inapposite. The call of the

request is whether there was a disclosure in a particular document. The original objection and supplemental response are non-responsive and evasive.

Request for Admission No. 21: Admit that YOU did not disclose the existence of a leak above the dining room in the HALTEN PROPERTY in Exhibit "1."

Motion to compel further responses is granted. Defendants' answer, based on the statement "Responding Party admits that Exhibit 1 does not contain a disclosure specifically referencing a "leak above the dining room" is inconsistent with the assertion that Defendants "cannot admit or deny the demand as phrased."

The court finds on balance that the Defendants did not act with substantial justification in the controverted Requests for Admissions.

Plaintiff's attorney Gregory P. Wayland set out the calculations for the preparation of both Plaintiff's Motion to Compel Further Responses to Special Interrogatories and its Motion to Compel Further Responses to Requests for Admissions at paragraphs 23-25 of his Declaration in Support of Motion to Compel Discovery Responses filed October 1, 2025. The court finds those calculations to be reasonable given the complexity of both of the motions at issue today.

Taken together with the discussion on sanctions below in Line 18, the court awards monetary sanctions in the total amount of \$4,415.00 for both the Motion to Compel Further Responses to Special Interrogatories and the Motion to Compel Further Responses to Requests for Admissions against Defendants Linda Williams and Compass California II, Inc. pursuant to Code of Civil Procedure section 2030.300. The amount is due and payable immediately.

18. 9:01 AM CASE NUMBER: C23-02669

CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPASS CALIFORNIA II, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET THREE (3)**

FILED BY: SCHAKANOVICH, ALDVIN

TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Plaintiff's Special Interrogatories, Set Three is rendered moot by the Defendant's verified supplemental response to Special Interrogatory No. 9. Special Interrogatory No. 9 requested the total number of a certain type of transactions that occurred from January 1, 2020 to the present. Defendant represents that it has provided a verified response and provided that number to Plaintiff. Plaintiff acknowledged that the interrogatory has been answered. However, a motion to compel may be heard even if tardy responses are served after the motion is filed. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th, 390, 410-411.